severe ordeals and extreme punishments; changing of caste based occupations was treated (Varna Sangraha) as a serious crime.

Arthasastra suggests disproportionate punishments for restricting instances of crimes; penalties levied on culprits, and confiscation of properties as a major source of royal income. The smritis treated women as inferior humans and were prejudiced against them even in matters of inheritance. The Sudras, and Panchamas were ineligible for a fair trial and fair punishment. Trade disputes were mostly settled through guilds (SRENIS). Similarly each artisan group had its own guild to resolve disputes within. The Mahasabhas of the Pallava – Pandya-Chola empires insulated Brahmins from regular system of justice. The Mahasabha's variyam (Dharma variam, Nyaya variam) settled issues within the mahasabhas. The local bodies like Ur, Urar, Nadu, Nattar and Nagarathar had their own judicial arrangements.

The Buddhist kingdoms (like that of Asoka) mostly disregarded smritis and enforced some sort of equal treatment to various social groups in matters of judicial disputes. Asoka removed cruel punishments and even instructed his official to be more humane and compassionate towards prisoners. The episode involving Kovalan's execution in Silappadikaram reveals the defects in the system of judicial procedure. Though high moral stature of the adjudicating officials were insisted in literature, we very often found arbitrariness in judicial trial and in awarding exemptions or punishments. There was no rule of law but rule of the powerful authorities that we find in ancient India.

## Ordeals

**Trail by Balance:** A palm leaf chit, with the alleged crime inscribed on it was placed on one side of the balance, and the accused was to sit on the other side of the balance. If the plate of the balance on while the accused came down, the accused was declared guilty

**Ordeal of Fire:** The accused was made to walk through fire and was deemed innocent only if the person suffered no injury.

**Ordeal of water :** The accused was made to drink the water used to clean the idol was deemed innocent if it had no harmful effects on him within the next 14 days.

**Ordeal By Poison :** The accused was made to consume poison and was deemed innocent only if did not have any effect on the person.

**Ordeal of Lot :** The accused was asked draw from the lot and was deemed innocent if he chose the lot of dharma.

**Ordeal of Rice Grains :** The accused was made to chow rice without the husk being removed and the presence of blood stains in his mouth resulted in the person being declared guilty.

**Ordeal of Fountain - Cheese :** The accused was compelled to drink a potion that could make him/her delirious and was deemed guilty if the person confessed the crime.



12th_Political Science_Unit_4.indd 66 12/6/2022 12:54:53 PM